

Present :

Mr. Justice Ashish Ranjan Das.

Criminal Revision No.1944 of 2021

In the matter of:

Md. Jashim Uddin

..... Petitioner

-Versus-

The State and another

..... Opposite parties.

Mr.Md. Shahadat Hossen

.....For the convict- petitioner.

Mr. Ashok Kumar Banik, Advocate

... For the opposite party No.2

Mr. Kazi Eliasur Rahman, A.A.G. with

Ms. Tahmina Sultana, A.A.G

... For the State

Heard on: 09.11.2022.

Judgment on: 24.11.2022

Ashish Ranjan Das, J:

Learned Additional Metropolitan Sessions Judge, 2nd Court, Chittagong in Criminal Appeal No.666 of 2020 dismissed the appeal and affirmed the judgment dated 03.03.2020 passed by the Joint Metropolitan Sessions Judge, 2nd. Court, Chittagong

in Sessions Case No.9992 of 2017 arising out of C.R. Case No. 1939 of 2017 wherein the petitioner was convicted under section 138 of the Negotiable Instruments Act of 1881 and was sentenced to suffer imprisonment for 3 months followed by a fine of Tk.15,00,000/-.

Now both the parties jointly appeared with an application of compromise. The case involved dishonour of cheque of Tk. 15,00,000/-, obviously this appeal was preferred upon deposit of 50% of the cheque amount and finally the accused petitioner repaid the remaining amount as it appears from this application of compromise and from the submission of the learned advocate for the accused petitioner.

Thus, the amount remains fully adjusted and the rule may be made absolute on compromise in terms of compromise application.

In the result, the rule is made absolute in terms

of compromise application.

Communicate the judgment and order to the court below.

Send down the L.C.R.

(Justice Ashish Ranjan Das)

Bashar B.O